

26STCV07033 26STCV07033

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-08-03

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Case Number: 26STCV07033 Hearing Date: August 3, 2026 Dept: 509

Care Flight, LLC v. Devalexis Holdings, LLC, et al.

DEMURRER TO CROSS-COMPLAINT

MOVING PARTY: Plaintiff/Cross-Defendant Care Flight, LLC

RESPONDING PARTY(S): Defendant/Cross-Complainant Devalexis Holdings, LLC

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This action concerns the sale of a 2014 Cirrus Design Corp SR22T aircraft. Plaintiff Care Flight, LLC alleges the sale of the Aircraft was based on materially false representations about its condition by seller Devalexis Holdings, LLC and third-party Century Aircraft Painting. Care Flight, LLC brings causes of action for: (1) fraudulent misrepresentation – Devalexis Holdings, LLC; (2) fraudulent misrepresentation – Century Aircraft Painting; (3) negligent misrepresentation; (4) negligence; (5) breach of express warranty; and (6) breach of the implied warranty of fitness for a particular purpose.

Devalexis Holdings, LLC (Cross-Complainant) brings a cross-complaint against Care Flight, LLC (Care Flight), Century Aircraft Painting, Chino Aircraft Services LLC, and Carlos Acosta. Cross-Complainant alleges causes of action for: (1) declaratory relief; (2) negligence; and (3) fraudulent misrepresentation. Only the first cause of action is alleged against Care Flight.

Care Flight now demurs to the first cause of action for declaratory relief in the cross-complaint. Cross-Complainant opposed.

TENTATIVE RULING:

Accordingly, Care Flight's demurrer to the first cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

This Cross-Complaint is DISMISSED WITH PREJUDICE, per Code of Civil Procedure, section 581(f)(1) as to Care Flight only.

Care Flight is ordered to give notice, unless waived.

DISCUSSION:

Demurrer to Complaint

I. Meet and Confer

The Declaration of attorney Sameer Hussain reflects that the meet and confer requirement was satisfied.

II. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Pro. § 430.30, subd. (a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Ibid.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, at p. 747.) “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.App.3d 584, 591.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

III. Analysis

As an initial matter, the Court notes that cross-defendant Carlos Acosta (Acosta) has filed Chapter 7 Bankruptcy. (See 6/26/26 Notice of Chapter 7 Bk.) However, “the automatic stay of judicial proceedings against a debtor in bankruptcy does not apply to nondebtor codefendants.” [Citations] As a general rule, therefore, because ‘the automatic stay protects only the debtor,’ the ‘[b]ankruptcy of one defendant in a multidefendant case does not stay the case as to the remaining defendants.’ [Citation].” (Higgins v. Superior Court (2017) 15 Cal.App.5th 973, 979–980.) This motion may be heard as it solely addresses the cause of action against Care Flight and does not disturb the proceedings against Acosta.

Care Flight demurs to the cross-complaint’s first cause of action for declaratory relief arguing that Cross-Complainant has failed to sufficiently plead a cause of action.

Declaratory relief is available “in cases of actual controversy relating to the legal rights and duties of the respective parties” regarding real property or under a contract. (Code Civ. Proc., § 1060.) Generally speaking, the purpose of a declaratory relief action is “to set controversies at rest before they lead to repudiation of obligations, invasions of rights, or commissions of wrongs . . . [Citations.]” (Travers v. Loudon (1967) 254 Cal.App.2d 926, 931.) “Another purpose is to liquidate doubts with respect to uncertainties or controversies which might otherwise result in subsequent litigation. [Citations.]” (Ibid.) “[S]ection 1060 does not require a breach of contract in order to obtain declaratory relief, only an ‘actual controversy.’ Declaratory relief pursuant to this section has frequently been used as a means of settling controversies between parties to a contract regarding the nature of their contractual rights and obligations.” ([Meyer v. Sprint Spectrum L.P. (2009) 45 Cal.4th 634, 647.])” (Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC (2010) 191 Cal.App.4th 357, 365.) Declaratory relief operates prospectively. (Id. at p. 366.)

“A complaint for declaratory relief must demonstrate: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party.” (Brownfield v. Daniel Freeman Marina Hospital (1989) 208 Cal.App.3d 405, 410.) “The ‘proper subjects’ of declaratory relief are set forth in Code of Civil Procedure section 1060 and other statutes.” (Ibid.) “The ‘actual controversy’ requirement concerns the existence of present controversy relating

to the legal rights and duties of the respective parties pursuant to contract (Code Civ. Proc., § 1060), statute or order.” (Ibid.)

Here, Cross-Complainant alleges: “Pursuant to Code of Civ. Proc. §1060, Devalexis seeks declaratory relief as to its rights under the APA, and specifically including but not limited to Section 9 (limitation of warranties) and Section 16 (attorney fees).” (Cross-Compl. ¶18.) “A separate cause of action against Care Flight in this Cross-Complaint is necessary due to Care Flight’s intentional concealment of the APA from its FAC. Since Care Flight failed to even mention the APA in its FAC, it is not possible for Devalexis to adequately rely upon the APA in a prayer for attorney fees in its Answer.” (Cross-Compl. ¶19.)

It appears that Cross-Complainant is seeking declaratory relief as to two issues: (1) the interpretation of the limitation of warranties provision in the Aircraft Purchase Agreement (APA) and (2) the application of the attorney’s fees provision to the underlying action. However, neither issues warrant declaratory relief.

1. Limitation on Warranties

Cross-Complainant “seeks declaratory relief as to its rights under the APA, and specifically including but not limited to Section 9 (limitation of warranties)” (Cross-Compl. ¶18.). However, “there is no basis for declaratory relief where only past wrongs are involved.” (Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC (2010) 191 Cal.App.4th 357, 366, quotation marks omitted.) Here, it appears this cause of action is being utilized by Cross-Complainant as a different avenue to plead its affirmative defense to Care Flight’s underlying first amended complaint (FAC). “The declaratory relief statute should not be used for the purpose of anticipating and determining an issue which can be determined in the main action.” (Hood v. Superior Court (1995) 33 Cal.App.4th 319, 324.) Cross-Complaint is seeking to utilize Section 9 to the APA as a shield in the pending underlying action making declaratory relief of such issue inappropriate.

Further, a court may refuse to issue a judicial declaration “in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.” (Code Civ. Pro § 1061; Schessler v. Keck (1954) 125 Cal.App.2d 827, 837, [A judicial declaration is unnecessary when “[a]n adjudication upon the issues raised” in the other causes of action “would fully and adequately determine all matters actually in controversy between the parties.”].) A separate, declaratory action to decide of the party’s rights and liabilities under the APA independently of the underlying action would be unnecessary and improper.

2. Attorney’s Fees

Next, Cross-Complainant “seeks declaratory relief as to its rights under the APA, and specifically ... Section 16 (attorney fees).” (Cross-Compl. ¶18.) Care Flight argues that this cause of action alleges no actual, present controversy. The Court agrees.

Before a controversy is ripe for adjudication it ‘must be definite and concrete, touching the legal relations of parties having adverse legal interests. [Citation.] It must be a real and substantial controversy admitting of specific relief through a decree of a conclusive character, as distinguished from an opinion advising what the law would be upon a hypothetical state of facts.’

...

Moreover, under Code of Civil Procedure section 1061, “[t]he court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.” This is a discretionary determination, subject to reversal only if that discretion is abused. The courts do not issue advisory opinions about the rights and duties of the parties under particular agreements, if no actual, justiciable controversy has yet developed.

(Otay Land Co. v. Royal Indemnity Co. (2008) 169 Cal.App.4th 556, 562-563, internal citations omitted.)

Here, there is no controversy that is currently active or reasonably pending as to the application of the attorney's fees provision on the APA. Instead, Cross-Complainant states:

The APA contains a bargained-for attorney's-fee provision in Section 16. That provision was intended to make the prevailing party whole in exactly this kind of dispute. But if Care Flight is permitted to dismiss Devalexis without a cross-complaint on file, the practical consequence is severe: the clerk would simply enter the dismissal, Devalexis would be left without a judgment in its favor, and Devalexis would be forced to file an entirely separate lawsuit—incurring still more unnecessary attorney's fees and costs—merely to recover the fees it was contractually promised. Devalexis would have no judgment from which to establish prevailing-party status and no efficient means of enforcing Section 16.

(Opp. at p. 4:10-17.)

This relief is therefore rooted in a purely hypothetical situation, and any such determination would be only advising what the law would be upon a hypothetical state of facts. Cross-Complainant has not been dismissed from the underlying action and there is no evidence that any voluntary dismissal is reasonably certain to occur.

Further, any entitlement to attorney fees under Section 16 may be determined upon resolution of the underlying action and possible subsequent motion for attorney's fees. Under the entirety of the circumstances here, declaratory relief is not proper for a determination an award of attorney's fees which may/may not become an issue requiring determination in the underlying action. As discussed above, a court may refuse to issue a judicial declaration "in any case where its declaration or determination is not necessary or proper at the time under all the circumstances." (Code Civ. Pro § 1061; Schessler v. Keck, supra, 125 Cal.App.2d at p. 837.) Cross-Complainant is free to make such request for attorney's fees in the underlying action if/when it becomes appropriate.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, there appears no additional facts that, if alleged, would change the very nature of the relief sought. Therefore, leave to amend is DENIED.

Accordingly, Care Flight's demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

IT IS SO ORDERED.

Dated: August 3, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.